

Monika Alias Vijay vs Vishnu Sharma on 5 April, 2019

Author: Pankaj Bhandari

Bench: Pankaj Bhandari

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Civil Transfer Application No. 85/2017

Monika @ Vijay W/o Shri Vishnu Sharma D/o Shri Ramesh Waka,
By Caste Brahmin, R/o At Present Village Baswa, Police Station
Baswa, Disict Dausa Raj.

----Petitioner

Versus

Vishnu Sharma S/o Shri Radharman Sharma, By Caste Brahmin,
R/o Village Akhegarh, Tehsil And Police Station Nadabai, District
Bharatpur Raj.

----Respondent

For Petitioner(s) : Mr. Umesh Vyas
For Respondent(s) : Mr. Nikhil Katara

HON'BLE MR. JUSTICE PANKAJ BHANDARI

Judgment / Order

05/04/2019

1. Matter comes up on an application filed by the petitioner for transfer of application under Section 13 (A) of the Hindu Marriage Act from Bharatpur to Dausa.
2. It is contended by counsel for the petitioner that petitioner wife has filed case under Section 498-A I.P.C. before the Court at Dausa. An application under Section 125 (3) Cr.P.C. is pending before the Family Court, Dausa. Hence, application filed by the respondent under Section 13 (A) of the Hindu Marriage Act before the Family Court, Bharatpur be transferred to Family Court, Dausa.
3. Counsel for the non-applicant has opposed the prayer. However, he contends that if the matter is transferred, application under Section 125 (3) Cr.P.C. and application under Section 13 (A) (2 of 2) [CTA-85/2017] of the Hindu Marriage Act filed by the non-applicant be heard on the same date.
4. I have considered the contentions.

5. In view of the fact that proceedings under Section 498-A I.P.C. & 125 (3) of Cr.P.C. is pending at Dausa, it would be proper to transfer the Case No.220/2015 pending before District Judge, Bharatpur to Family Court, Dausa. Further, it would be in the interest of both the parties that application under Section 125 (3) Cr.P.C. and application filed by respondent under Section 13 (A) of the Hindu Marriage Act are taken up by the Court on the same date.

6. Transfer application is accordingly allowed. Application No.220/2015 pending before District Judge, Bharatpur is transferred to Family Court, Dausa. Both the parties shall remain present before the Family Court, Dausa on 18.04.2019. Family Court, Dausa is directed to post the application under Section 125 (3) of Cr.P.C. and 13 (A) of the Hindu Marriage Act on the same date and decide the dispute/lis pending between the parties at the earliest.

(PANKAJ BHANDARI),J.

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